

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

I,

**DECLARATION OF PLAINTIFF
FRANCISCUS DYLAN ROSARIO
IN SUPPORT OF OPPOSITION TO
DEMURRER**

Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in this action, suing in pro per. I have personal knowledge of the facts stated below except where stated as matters of information and belief, and as to those I believe them to be true based on the reasons stated.
2. This declaration is filed in support of Plaintiff's Opposition to Defendant's **Demurrer** only. Legal argument appears in Plaintiff's **Memorandum of Points and Authorities in Opposition to Demurrer** filed concurrently herewith (and, if the hearing is consolidated, in the consolidated Anti-SLAPP and demurrer memorandum in the consolidated opposition filed concurrently, if any).
3. I am familiar with the operative pleading currently before the Court (the First Amended Com-

plaint) and, if the Court grants leave, the **Proposed Second Amended Complaint** offered with Plaintiff's motion for leave to amend.

4. I have reviewed Defendant's demurrer papers **on file** in **Case No. CGC-25-631802**, including Defendant's **Demurrer, Memorandum of Points and Authorities in Support of Demurrer, Statement of Demurrer, and Request for Judicial Notice in Support of Demurrer** with exhibits labeled RFJN Ex. A through T, **as those instruments appear on the court's register of actions or in the filed PDFs for this case**. Pinpoint cites in plaintiff's memorandum follow the convention described in plaintiff's supporting citation materials (including the lodged RFJN citation matrix, if any).
5. Plaintiff files a two-exhibit Exhibit Appendix with this opposition consisting of Exhibits A and B, as described in paragraph 14 below. I rely on that appendix only for authenticated copies of the denial letter as called for in the operative pleading and memorandum.
6. I dispute that **judicial notice** of court records or defense characterization of those records can resolve the demurrer on **disputed core facts** in a manner that displaces the face of the operative complaint or the limits of Code of Civil Procedure section 430.70 and Evidence Code sections 452 and 453. Plaintiff's memorandum states the legal analysis.
- 6A. The independent economic harm I suffered includes: (a) transcript and court-reporter costs for obtaining certified records to reconstruct the evidentiary chronology; (b) subpoena, process-service, and certification fees for obtaining 911 recordings, CAD logs, and body-worn camera footage from SFPD; (c) document-preparation, authentication, and verification costs for establishing provenance of materials CSAA falsely represented had been reviewed; (d) lost business opportunities resulting from time diverted to reconstructing the concealed investigation history; and (e) professional costs of organizing the contradiction chronology that CSAA's concealment made inaccessible. These are costs no negligence jury was asked to consider and are distinct from bodily-injury damages.
7. I am informed of e-filing practices in this court and understand that separate electronic uploads may be required for each lead document under California Rules of Court, rules 2.100 through 2.111, and applicable vendor rules, even when related papers are offered in one filing

transaction.

8. **Meet and confer (Code of Civil Procedure section 430.41).** Before filing this opposition I attempted in good faith to meet and confer regarding the grounds for the demurrer as follows: On **April 6, 2026**, defense counsel sent a **written correspondence** describing intended demurrer objections and authorities. **Also on April 6, 2026**, defense counsel **offered by email** a **telephone** conference to discuss the operative pleading and the planned demurrer. On **April 8, 2026**, I participated in a **lengthy telephone meet and confer** with defense counsel concerning those topics. Defense counsel **responded** throughout this sequence. I thereafter sent **written follow-up communications**. We **did not** reach agreement that would eliminate the need for the demurrer. To the best of my knowledge, **both sides** undertook good-faith conferral consistent with section **430.41** as to this opposition.
9. I understand, based on my review of the relevant authorities including Serrano v. Priest (1976) 5 Cal.3d 121 and ABF Capital Corp. v. Berglass (1996) 51 Cal.App.4th 1539, that a demurrer tests the sufficiency of the pleading under the four corners of the complaint, Code of Civil Procedure sections 430.10 and 430.50, against the legal sufficiency of the claim; facts alleged on information and belief are taken as true to the extent they are well pleaded. That standard is not the Anti-SLAPP Step Two probability-of-prevailing inquiry. Defendant's papers, in my view, apply merits-stage and trial rhetoric to a pleading-stage motion. I am informed that both standards must be kept analytically distinct, and I rely on the legal analysis in Plaintiff's memorandum filed concurrently herewith.
10. I understand, based on my review of Park v. Board of Trustees of the California State University (2017) 2 Cal.5th 1057, Kimmel v. Goland (1990) 51 Cal.3d 202, and Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, that three analytical filters guide this opposition: (1) under Park, the gravamen is identified by the actionable wrong, which I understand here to include the noncommunicative failure to investigate rather than labels in the complaint; (2) under Kimmel, conduct is distinguished from communication, and the litigation privilege does not immunize noncommunicative conduct; (3) under Kwikset, evidence is distinguished from gravamen, and the denial letter is pleaded as evidence of omission, not as the

sole source of liability. Defendant's papers, in my view, collapse these distinctions. I rely on Plaintiff's memorandum for the full development of this analysis.

11. I understand, based on my review of Moradi-Shalal v. Fireman's Fund Ins. Companies (1988) 46 Cal.3d 287, Zhang v. Superior Court (2013) 57 Cal.4th 363, and Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, that Moradi-Shalal preserved common law fraud actions notwithstanding statutory limitations on insurer communications; that Zhang addresses pleading around absolute statutory bars rather than a UCL unlawful prong grounded in independent common law fraud; and that Action Apartment confirms privilege rhetoric cannot erase extrinsic fraud theories at the pleading stage. This paragraph states my personal understanding; the legal argument appears in Plaintiff's memorandum filed concurrently herewith.
12. I understand, based on my review of Crowley v. Katleman (1994) 8 Cal.4th 666 and Lucido v. Superior Court (1990) 51 Cal.3d 335, that Crowley requires a primary-rights analysis showing different rights, duties, and injuries before claim preclusion attaches, and that Lucido requires the same issue to have been actually litigated, necessarily decided, and essential to the prior judgment before issue preclusion applies. On the face of this pleading, neither standard is satisfied, in my view, because CSAA's alleged investigative fraud and the driver's negligence involve different defendants, different duties, and injuries not adjudicated in the prior action. I rely on Plaintiff's memorandum for the complete analysis.
13. I understand, based on my review of Price v. Dames & Moore (1987) 191 Cal.App.3d 917, Coffman Specialties v. Berger (1985) 165 Cal.App.3d 1240, and Dalton v. East Bay Mun. Utility Dist. (1987) 189 Cal.App.3d 1338, that leave to amend must be granted unless there is no reasonable possibility the defect can be cured. Plaintiff has concurrently lodged a Proposed Second Amended Complaint that narrows the theory, clarifies the chronology, segregates damages, and disclaims improper theories; that showing, in my view, defeats any argument that amendment would be futile, regardless of how the Court rules on the merits of the current pleading. I rely on Plaintiff's memorandum filed concurrently herewith.
14. **Authentication of exhibit appendix.** Each exhibit filed in the **Exhibit Appendix** volume

submitted with this opposition is a **true and correct copy** of the document it purports to be, as described in the appendix index. Without limiting the foregoing, the table below matches the index described in the operative pleading and memorandum (**adjust** labels if the filed index differs):

Exhibit label	Description (match index)
A	February 25, 2021 claim-denial letter (pages __ through __)
B	February 25, 2021 claim-denial letter (companion or continuation pages __ through __)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 14, 2026 at San Francisco, California.

Franciscus Dylan Rosario, Plaintiff in pro per

Dated: April 16, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com